

Form 15-76A
(Subrule 15-76(1))

COURT FILE NUMBER _____

COURT OF KING'S BENCH FOR SASKATCHEWAN
(FAMILY LAW DIVISION)

JUDICIAL CENTRE _____

PETITIONER/
CO-PETITIONERS _____

RESPONDENT _____

**APPLICATION FOR JUDGMENT IN AN UNCONTESTED FAMILY LAW
PROCEEDING/ UNCONTESTED DIVORCE PROCEEDING**

This application is being made by the _____ (Petitioner/Respondent) without notice.

1 The petitioner (or co-petitioners or respondent) request(s) that this proceeding be set down for determination as an uncontested proceeding to be heard pursuant to Rule 15-76 on the basis of affidavit evidence.

2 The petitioner/respondent claims the following remedy:

- ☐ Divorce ☐ early date of effect of judgment
- ☐ Parenting
- ☐ Support for the petitioner/respondent in the amount of \$ _____ per month
- ☐ Support for children in the amount of \$ _____ per month
- ☐ Remedy under *The Family Property Act*
- ☐ Costs
- ☐ Other: (specify) _____

3 The following pleadings, proceedings and documents are on file:

- ☐ Petition
- ☐ Answer
- ☐ Answer and Counter-Petition
- ☐ Reply
- ☐ Demand for Notice
- ☐ Marriage registration
- ☐ Order dispensing with production of marriage registration
- ☐ Financial Statements ☐ petitioner ☐ respondent
- ☐ Property Statements ☐ petitioner ☐ respondent
- ☐ Waiver of Financial Statements
- ☐ Waiver of Property Statements
- ☐ Central Registry notification
- ☐ Other: (*specify*) _____

4 Service of the petition on the respondent was effected in _____
(*province / state or country*)
on _____, by:
(*date*)

- ☐ Personal service. See affidavit of personal service.
- ☐ Substituted service. See copy of order and affidavit of compliance attached to petition.

5 The respondent was noted for default of Answer on _____.
(*date*)
or

The respondent filed an Answer but the Answer was withdrawn (*or* struck out)
on _____.
(*date*)

or

The respondent has consented to this application by consent endorsed on the draft judgment and/or draft order.

(Delete paragraphs 4 and 5 if it is a joint application.)

6 The petitioner's (or respondent's) affidavit required by Rule 15-78 (or Rule 15-82) accompanies this application.

The following documents are attached as exhibits to the affidavit:

- ☐ Agreement as to Child Support
- ☐ Income information ☐ petitioner ☐ respondent
- ☐ Separation or financial or parenting agreement
- ☐ Previous court order(s)
- ☐ Undertaking that no appeal from judgment will be taken
- ☐ Other: (*specify*) _____

7 The following documents also accompany this application:

- ☐ Affidavit of respondent admitting adultery
- ☐ Certified transcript of the examination for discovery of the respondent
- ☐ Draft judgment
- ☐ Draft child support order
- ☐ Draft certificate
- ☐ Addressed envelopes – 2 addressed to respondent and 2 addressed to petitioner
- ☐ Other: (*specify*) _____

8 The respondent's address is: _____

(add paragraph 9 if applicable)

9 The address for the respondent's lawyer is: _____

DATED at _____, Saskatchewan, this _____ day
of _____, 2 _____.

(signature of party or party's lawyer)

CONTACT INFORMATION AND ADDRESS FOR SERVICE

If prepared by a lawyer for the party

Name of firm: _____

Name of lawyer in charge of file: _____

Address of legal firm: _____

(set out the street address)

Telephone number: _____

Fax number *(if any)*: _____

E-mail address *(if any)*: _____

or

If the party is self-represented

Name of party: _____

Address for service: _____

(set out the street address)

Telephone number: _____

Fax number *(if any)*: _____

E-mail address *(if any)*: _____

Amended. Gaz. 13 Oct. 2023.